

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

FILED FOR RECORD
R.B. SHORE

2015 MAY 12 PM 3:26

CLERK OF THE CIRCUIT COURT
MANATEE CO. FLORIDA

COLONIAL MOBILE MANOR,
LIMITED, LLLP d/b/a COLONIAL
MOBILE MANOR,
Plaintiff(s),

vs.

Case No. 2015-CC-1274

MARLIN YODER and
ANY UNKNOWN TENANT(S),
Defendant(s).

ORDER FOR MEDIATION

THIS CAUSE is ready for trial in that notice has been filed that the cause is at issue. So that an attempt be made to reach a mutually agreeable settlement, and in the interest of judicial economy, it is ordered that parties shall participate in mediation pursuant to Rule 1.700, Florida Rules of Civil Procedure.

The procedure and time requirements for setting up and accomplishing the mediation session shall be as follows:

1. Plaintiff or Plaintiff's attorney shall have the initial obligation of going forward with setting up the session.
2. Within ten days from the date of this Order, Plaintiff or Plaintiff's counsel shall do the following:
 - a. Contact the Citizen Dispute Settlement Program [CDSP] at 941/861-7833 (Sarasota & DeSoto Counties) or 941/749-3660 (Manatee County) **and** the Defendant or Defendant's counsel to set the date and time for the session before a Supreme Court Certified, County Court Mediator. **[Please see paragraph 5 regarding fees]**
 - b. Clear the date and time for the session with the Defendant or Defendant's attorney, and confirm thereafter said agreed upon date and time with CDSP.
 - c. In the event that the parties are unable to reach an agreement relative to date and time for the session, it shall be the responsibility of each side to contact the court in writing

[with a copy to the other side] within twenty-one days of this Order. The court shall thereafter enter such orders as the court may deem appropriate.

3. If the parties wish to use a privately retained mediator, paid for by the parties under a mutual agreement, a written stipulation designating the identity and address of the mediator shall be signed and dated by both parties.
4. When the parties decide to use a private mediator, it shall be the responsibility of the Plaintiff or Plaintiff's attorney within ten days of this Order to forward the written stipulation to me for approval, and to so advise CDSP in writing.
5. Pursuant to Section 44.108, Florida Statutes, a fee has been established for all county civil cases, **excluding small claims and residential eviction cases**, when the court program is used. Prior to the scheduled mediation date, the parties shall pay \$60.00 per party (per session) to the Clerk of the Circuit Court. The parties must provide CDSP with verification of payment prior to the scheduled mediation conference.
6. If a party fails to pay the fee prior to the mediation, the non-paying party will be asked to enter into an Agreement for Payment of Mediation Fees, requiring payment of the mediation fee within twenty (20) days, and providing for entry of a Judgment against the non-paying party, without notice or hearing, in the event that the non-paying party fails to comply with the agreement to pay the fees. The party shall pay the fee or obtain a certificate of indigence from the Clerk of Court. A Judgment may negatively affect credit and could lead to seizure of property by the State of Florida to satisfy the judgment.
7. If a non-paying party declines to enter into an Agreement for Payment of Mediation Fees, the Mediation Program shall report the non-payment immediately to the Court, and the Court shall issue an Order to Show Cause. Thereafter a, Judgment or other sanctions may be entered against the non-paying party.
8. If the parties fail within ten days of this Order to advise CDSP that the procedures in this Order have been complied with, it shall be presumed that the parties have surrendered the responsibility for setting up the session to CDSP. It shall be the Order of this Court that CDSP shall immediately select the date and time for the session and accordingly notify the parties in writing.
9. In no event shall the actual session be required of the parties any earlier than thirty days from the date of this Order. However, the initial setting of the session shall not occur any later than sixty days from the date of this Order.
10. Once the session is scheduled with the participation of CDSP, CDSP is authorized to forward a Notice of Mediation Conference to the parties.
11. A party shall not unilaterally cancel any mediation session once it has been scheduled.

12. Any continuance of the session must be **TIMELY** presented by the parties to CDSP. Both sides shall contact CDSP in order to calendar the session for a mutually convenient date and time. In no event shall any session finally occur later than sixty days of this order, unless written approval by the court is granted for good cause.
13. The parties are advised that attendance at the mediation session is **mandatory**. Failure to appear may result in such sanctions as the court may deem appropriate upon motion of the aggrieved party. See Florida Rules of Civil Procedure, 1.720(b).
14. Appearance by phone shall be permitted pursuant to 12th Judicial Circuit Administrative Order. Appearance by phone must be brought, in writing, to the timely attention of the other side and CDSP. Costs shall be paid by the party seeking to appear by phone.
15. If settlement is reached, the original shall be forwarded promptly to the court for approval. If settlement is not reached, Plaintiff or Plaintiff's attorney shall so notify the court in writing so that a trial date may be set. CDSP shall also notify the court.

WHEREFORE, the parties are ordered to present themselves for a mediation session, in accordance with the procedures set forth in this Order, at the MANATEE County Judicial Center or such other place before a privately retained mediator as agreed to by the parties.

ORDERED AND ADJUDGED this 12th day of MAY, 2015, in Chambers,
MANATEE County Judicial Center, BRADENTON, Florida.



CHARLES SNIFFEN
COUNTY COURT JUDGE

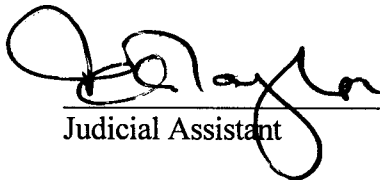
PERSONS WITH DISABILITIES: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Sarasota County Jury Office, P.O. Box 3079, Sarasota, Florida 34230-3079, (941)861-8000; the Manatee County Jury Office, P.O. Box 25400, Bradenton, Florida 34206, (941)741-4062; the DeSoto County Clerk's Office, 115 East Oak Street, Arcadia, Florida 34266, (863)993-4876 at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

NOTE: Court interpreters are NOT provided by the Court for mediation. If the assistance of an interpreter is required by a party in order to participate in the mediation, it is the responsibility of the party requiring assistance to arrange for a court interpreter that meets the requirements set forth in the Florida Rules for Certification and Regulation of Spoken Language Court Interpreters. Failure to bring an approved interpreter may result in the cancellation of the mediation. A statewide list of approved interpreters is available at: <http://flcourts.org/resources-and-services/court-interpreters.stml>.

NOTA: Interpretes jurídicos NO son proporcionados por el tribunal para procesos de mediación. Si la ayuda de un intérprete para participar en el proceso de mediación es requerida por alguna de las partes, es responsabilidad de quien necesita esta asistencia, hacer los arreglos necesarios para contratar un intérprete jurídico que cumpla con los requisitos establecidos en las Leyes de la Florida para la Certificación y el Regulación de intérpretes jurídicos del idioma hablado. El no traer un intérprete aprobado podría resultar en la cancelación de su mediación. La lista de intérpretes aprobados está disponible en: <http://flcourts.org/resources-and-services/court-interpreters.stml>.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been forwarded this 12th day of May 2015, to **WILLIAM C. PRICE III, ESQUIRE**, 522 12th Street West, Bradenton, FL 34205 and **DEREK W. EISEMANN, ESQUIRE**, 1900 Ringling Blvd., Sarasota, FL 34236.



Judicial Assistant

cc: Citizen Dispute Settlement Program